EUROPEAN COURT OF HUMAN RIGHTS
COUR EUROPÉENNE DES DROITS DE L'HOMME

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THIRD SECTION

Application no. 2956/20
Olga Eduardovna VAGNER
against Russia
lodged on 28 December 2019

**SUBJECT MATTER OF THE CASE**

The application concerns child contact rights. From 2005 to 2014 the applicant was in an unregistered same-sex relationship with F. The couple lived initially in Russia and, since 2013, in the USA. They raised M. (F.'s biological son born in 2011) and A. (the applicant's biological daughter born in 2004) together. After the couple's separation in 2014 Superior Court of California, County of San Diego recognised the applicant as M.'s parent, ordered the applicant's and F.'s joint custody over M. and determined contact rights. In 2016 F. and M. left the USA for Russia. Russian courts rejected the applicant's application for contact rights as inadmissible, finding that she had no standing to apply for contact rights because she was not M.'s parent. The Russian courts refused to take into the decision issued by the US court because Russia had not signed international agreements on same-sex marriage.

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## QUESTION TO THE PARTIES

Has the rejection of the applicant's application for contact rights irrespective of M.'s best interests amounted to a failure to respect the applicant's family life, guaranteed by Article 8 of the Convention (see *Nazarenko v. Russia*, no. 39438/13, ECHR 2015 (extracts))?